

allegation of the condition precedent in relation to the electric chargers is sufficient. (See Complaint, ¶¶ 9-10.)

EarthGrid argues that Boardwalk's allegations relating to its installation of electric vehicle chargers as an inducement are not in line with its view of those contract provisions and that the Court should sustain its demurrer and order Boardwalk to add additional allegations. (Reply, pp. 3:12-4:25.) This argument does not track the standard currently being evaluated on this demurrer as there is no requirement for one alleging the substance of the relevant terms of a contract to do so in line with the other side's view of those contract provisions. Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) While it is true that allegations of excuse or waiver of a condition precedent must be pled specifically, here there are no allegations of excuse or waiver of a condition precedent to trigger that requirement. (See Complaint, ¶¶ 9-10 [generally pleading a condition precedent and its satisfaction].)

A "breach" in a breach of contract cause of action may not be pled generally but instead requires the pleader to state facts showing a breach. (*Levy v. State Farm Mutual Automobile Ins. Co.* (2007) 150 Cal. App. 4th 1, 5-6.) Here, this is satisfied by Boardwalk's allegations of the dates that payments were due, the amounts due, and when EarthGrid failed to make those payments. (Complaint, ¶¶ 8, 11-12.)

The Court concludes that Boardwalk has properly pled its claim for breach of written contract and overrules EarthGrid's general demurrer.

Discussion – Special Demurrer

EarthGrid also specially demurs to the complaint for the same reasons it asserts in its general demurrer. (Demurrer MPA, p. 5:8-25.) EarthGrid's special demurrer is overruled because Boardwalk's complaint is not prejudicially uncertain due to the view of this Court that Boardwalk adequately pled the effect of the contract. (See, *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 694-696.)

The Court orders EarthGrid to file and serve its answer to the complaint within 10 days of entry of this order.

11. 9:00 AM CASE NUMBER: C25-02154
CASE NAME: AZIZA SHARIFI VS. CITY OF CONCORD
HEARING ON PETITION IN RE: AN ORDER RELIEVING PLAINTIFF FROM GOVERNMENT ENTITY CLAIM
FILED BY: SHARIFI, AZIZA
TENTATIVE RULING:

Plaintiff Aziza Sharifi's petition for relief from the government claim requirement is **granted**.

On October 1, 2024, Plaintiff tripped and fell on a sidewalk and was injured. The six-month deadline to submit a government claim expired on April 1, 2025. On April 8, 2025, Plaintiff hired her

current attorneys. Plaintiff submitted an application for leave to present a late claim on April 23, 2025, which was denied on May 7, 2025. Plaintiff sued the City of Concord for dangerous condition of public property on July 28, 2025. Plaintiff filed this petition for relief from the government claim requirements on September 29, 2025.

In bringing this petition, Plaintiff declares that she was injured from a trip and fall on a sidewalk. She had pain and limited range of motion and sought medical care. (Sharifi dec. ¶13.) Plaintiff explains that she attempted to treat her injuries conservatively with physical therapy and other non-invasive methods. (Sharifi dec. ¶14.) Plaintiff did not initially consider pursuing legal action because she hoped that her condition would improve over time. (Sharifi dec. ¶14.) When Plaintiff's symptoms persisted and her doctors recommended more extensive treatment, she started to explore legal representation. (Sharifi dec. ¶18.) Plaintiff retained her lawyers on April 8, 2025, and only learned of the need to file a government claim after she retained her lawyers. (Sharifi dec. ¶19-10.)

The petition seeks relief based on Petitioner's mistake, inadvertence, surprise or excusable neglect in failing to timely file a government claim. Government Code section 946.6(c)(1) requires the trial court to grant a petition for relief from timely filing a government claim if (1) the court finds that an application for leave to present a late claim was made within a reasonable time, not to exceed one year after accrual of the claim, (2) the application was denied or deemed denied, and (3) the failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect. (Government Code §946.6(c)(1); see also *Ebersol v. Cowan* (1983) 35 Cal.3d 427, 431-432.) The standard for mistake, inadvertence, surprise, or excusable neglect is the same as under Code of Civil Procedure section 473 for relieving a party from a default judgment. (*Ebersol, supra*, 35 Cal.3d at 435.) As it is a remedial statute, a trial or appellate court must resolve any doubts in favor of the petition. (*Ibid.*)

If the petitioner meets his burden of showing that the failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect then the request should be granted unless the government agency can establish prejudice arising from the failure to file a timely claim. (*Dep't of Water & Power v. Superior Court* (2000) 82 Cal.App.4th 1288, 1297.)

The City argues that in most cases, a petitioner may not argue excusable neglect when he or she fails to take any action in pursuit of the claim within six-months. Some cases hold that a petitioner must make a diligent effort to obtain counsel before the six month claim period expires in order to show excusable neglect. (See, e.g. *Ebersol v. Cowan* (1983) 35 Cal.3d 427; *People ex rel. DOT v. Superior Court* (2003) 105 Cal.App.4th 39.) Those cases, however, involve situations where the petitioner did not discover that there was a public entity potentially responsible for the injury and also failed to contact an attorney until after the claim expired. But "even the failure to obtain legal advice will be excused when a different course of action is reasonably prudent. Circumstances which would 'trap the unwary' may suffice." (*Bertorelli v. City of Tulare* (1986) 180 Cal.App.3d 432, 439.)

The City relies on *Harrison v. County of Del Norte* (1985) 168 Cal.App.3d 1 to argue that Petitioner is not entitled to relief in this case. In *Harrison*, the claimant was injured while working on a county project that was managed by the state. The claimant did not submit a government claim to either public entity within the time limit. He hired an attorney after the time to submit a claim had

expired. Claimant argued for excusable neglect because he was unsophisticated in legal matters and thought his only remedy was workers' compensation. He also argued that he was hospitalized three times following the accident and spent the remainder of his recuperation period at home, unable to attend to his business affairs. The court found the facts did not show excusable neglect. (*Id.* at 7.)

Here Plaintiff thought her injuries would heal with physical therapy and in that event, she had not considered legal action. It was only when Plaintiff learned that she required more extensive treatment that she looked into taking legal action. In *Harrison* the claimant thought he was limited to workers' compensation, which shows that he was considering legal options for compensation, but mistakenly thought those options were limited. Here, by contrast, Plaintiff opted to wait and see if she would heal without needing extensive medical care and thus, she did not think she would need compensation at the time of her injury. Plaintiff's decision to try physical therapy before considering legal options was reasonably prudent.

The Court finds that Plaintiff's failure to timely submit a government claim was the result of mistake or excusable neglect because Plaintiff did not realize that she should have taken legal action to preserve her rights even if she hoped to heal with physical therapy. The City has not shown any prejudice from the failure to timely submit a government claim. Therefore, the petition from relief from timely filing a government claim is granted.

12. 9:00 AM CASE NUMBER: C25-02532
CASE NAME: ESTATE OF HENRY M. SIEGEL VS. JENNIFER SIEGEL
HEARING ON PETITION IN RE: PETITION TO ENFORCE SETTLEMENT
FILED BY:

TENTATIVE RULING:

The Plaintiff's unopposed Petition to Enforce Settlement is **denied** without prejudice.

Fundamentally, there is no proof that defendant was ever served with a copy of the Summons and Petition in this matter. The court has no personal jurisdiction over the defendant at this time.

In addition, Plaintiff has neglected to show proof of service of a notice of motion, the motion itself, and the papers on which the petition is based, on the defendant. Once the defendant is properly before the court, the court urges Plaintiff to take note of the requirements for the form of a motion contained in CCP § 1010.

13. 9:00 AM CASE NUMBER: MSC19-01794
CASE NAME: MURPHY VS LU
HEARING ON SUMMARY MOTION ON 2ND AMENDED CROSS-COMPLAINT
FILED BY: WEE, BILLY

TENTATIVE RULING:

Before the Court is Cross-Defendants Billy Wee, Eileen Wee, and Wee Yoga, LLC's Motion for Summary Judgment or, in the alternative, Summary Adjudication on Cross-Complainant Jennifer Lu's Second Amended Cross-Complaint.